

Calendar Line 3

Case Name: Creditors Adjustment Bureau v. JTAI Entertainment 1&2 LLC et al.

Case No.: 24CV451766

This is a limited civil debt collection action brought by plaintiff Creditors Adjustment Bureau, Inc. (CAB) against defendants JTAI Entertainment 1&2 LLC (JTAI), Jesus Fernandez, and Virginia Fernandez.

The original and still operative complaint filed in November 2024 alleges four causes of action against all defendants: (1) common count—open book account; (2) common count—account stated; (3) common count—reasonable value of good; and (4) breach of contract (two written contracts attached to the complaint as exhibits 1 and 2).

CAB seeks to recover \$22,276.10 in debt, plus interest, owed by defendants to Bay Alarm Company, who assigned the claim to CAB. (See complaint at ¶¶ 1-5.) Self-represented defendants Jesus and Virginia Fernandez filed an answer to the complaint in January 2025. A default was entered against JTAI in January 2025.

Now before the court is CAB’s motion for summary adjudication, opposed by Jesus and Virginia Fernandez (hereafter, Defendants). This motion was set for hearing on June 4, 2026 by the court’s May 5, 2026 order. The case is currently set for a court trial on June 8, 2026.

LEGAL STANDARDS—SUMMARY JUDGMENT AND ADJUDICATION

The pleadings limit the issues presented for summary judgment or summary adjudication and such a motion may not be granted or denied based on issues not raised by the pleadings. (*Laabs v. City of Victorville* (2008) 163 Cal.App.4th 1242, 1258 (*Laabs*); *Nieto v. Blue Shield of Calif. Life & Health Ins.* (2010) 181 Cal.App.4th 60, 73 (*Nieto*).) The moving party bears the initial burden of production to make a prima facie showing that there are no triable issues of material fact. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850 (*Aguilar*).) A motion for summary judgment or adjudication shall be granted only if it completely disposes of an entire cause of action, an affirmative defense, a claim for damages, or an “issue of duty.” (Code Civ. Proc., § 437c, subd. (f)(1); *McClasky v. California State Auto. Ass’n* (2010) 189 Cal.App.4th 947, 975 (*McClasky*); *Palm Spring Villas II Homeowners Association, Inc. v. Parth* (2016) 248 Cal.App.4th 268, 288.)

“A plaintiff moving for summary adjudication meets its burden if it proves each element of the cause of action.” (*Quidel Corp. v. Super. Ct.* (2020) 57 Cal.App.5th 155, 163.) If the plaintiff meets its burden, the defendant must set forth specific facts showing a triable issue of material facts exist. (*Id.* at p. 164.) The opposing party may be bound by admissions made in deposition testimony or verified responses to discovery. (*Shin v. Ahn* (2007) 42 Cal.4th 482, 500, fn. 12 [“a party cannot create an issue of fact by a declaration which contradicts his prior discovery responses.”])

A reply “shall not include any new evidentiary matter, additional material facts, or separate statement submitted with the reply and not presented in the moving papers or opposing papers.” (Code Civ. Proc., § 437c, subd. (b)(4); *Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537-38; *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 252.)

DISCUSSION

CAB moves for summary adjudication of its fourth cause of action for breach of contract as brought against Defendants. (See CAB's notice of motion.)

"To prevail on a cause of action for breach of contract, the plaintiff must prove (1) the contract, (2) the plaintiff's performance of the contract or excuse for nonperformance, (3) the defendant's breach, and (4) the resulting damage to the plaintiff." (*Richman v. Hartley* (2014) 224 Cal.App.4th 1182, 1186.)

CAB submitted the following admissible evidence: the supporting declarations of Doug Hewey, Director of Billing and Accounts Receivable for Bay Alarm (authenticating exhibits 1-6 to CAB's appendix of supporting evidence), and of CAB counsel Tiffanie Brown (authenticating exhibits 6-17 to CAB's Appendix). That evidence establishes that defendant Jesus Fernandez entered into a partnership agreement with Liliana Ortega and Javier Perez in March 2023 for the operation of two businesses, Maria's Night Club and Tony's Pool Hall. Defendant Virginia Fernandez was a witness to this agreement and the designated recipient for rent payments. (See CAB exhibits 17 and 18.) Iliana Ortega entered into written contracts with Bay Alarm on behalf of Maria's Night Club in April 2023 to provide alarm services for the business location. (See CAB exhibits 1-3.) For a time, payments were made to Bay Alarm by JTAI, with checks signed by Javier Perez. (See CAB exhibit 4.) Payments eventually ceased, with an outstanding balance of \$22,276.10 owed to Bay Alarm. Bay Alarm assigned this unpaid debt to CAB. (See Hewey declaration and CAB exhibit 6.) CAB has also shown that Defendants own the property where Maria's Night Club is located, and that the liquor license used by the night club is in Defendants' names. (See CAB exhibits 7 and 8.)

The foregoing evidence is sufficient to meet CAB's initial burden to show that the contract with Bay Alarm was breached, and that Defendants are liable for the unpaid amount due on the contract as members of the partnership established for the operation of Maria's Night Club. (See Corp. Code § 16306, subd. (a) ["Except as otherwise provided in subdivisions (b) and (c), all partners are liable jointly and severally for all obligations of the partnership unless otherwise agreed by the claimant or provided by law"].)

When the burden shifts, Defendants do not raise any triable issues of material fact. Defendants have failed to submit the required opposing separate statement, which is itself a sufficient ground for granting the motion. (Code Civ. Proc., § 437c, subd. (b)(3).) Self-represented litigants "are held to the same standards as attorneys" and must comply with the rules of civil procedure. (*Kobayashi v. Superior Court* (2009) 175 Cal.App.4th 536, 543; *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-985.) The opposition filed by Defendants is a two-page document that denies liability. The opposition does not address any of CAB's evidence, including the evidence establishing a partnership agreement. No supporting declarations or other evidence has been submitted by Defendants.

CAB's motion for summary adjudication of the fourth cause of action is granted.

CONCLUSION

Plaintiff CAB's motion for summary adjudication of its fourth cause of action for breach of contract against Jesus Fernandez and Virginia Fernandez is granted.

Trial on the remaining causes of action remains as set.

The court will prepare the order.

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Calendar Lines 5-6**Case Name:** Fang Xia v. Park Townsend Homeowners Association**Case No.:** 25CV460436

At issue are two motions to compel filed by plaintiff Fang Xia: a motion to compel further responses to form interrogatories, set one; and a motion to compel further responses to requests for production, set one. Notice is proper and the motions are opposed by defendant Park Townsend Homeowners Association. The case involves a dispute over liability for damage to commercial property as a result of a water leak from a burst pipe.

Motion to Compel Further Responses to Form Interrogatories, Set One

Plaintiff moved to compel further responses to form interrogatory No. 15.1(A) and (C), which request facts and documents supporting “each denial of a material allegation and each special or affirmative defense.” (Code Civ. Proc., § 2030.300.) Defendant has since supplemented its response to that interrogatory twice. Plaintiff’s reply acknowledges the “Second Amended Responses addressed the issue compelled in this Motion.” The motion is thus DENIED AS MOOT. The parties’ requests for discovery sanctions related to this motion are DENIED.

Motion to Compel Further Responses to Requests For Production, Set One

Plaintiff moved to compel further responses to requests for production, set one, Nos. 1 through 36. (Code Civ. Proc., § 2031.310.) Defendant has since supplemented its responses to those requests for production. The court finds the majority of defendant’s responses are now code-compliant. Plaintiff’s reply argues defendant’s responses are deficient as to the following items responsive to request Nos. 8 through 21: copies of work orders, proposals, and estimates from contractors. (Reply at 4:19-21.) A supplemental declaration by plaintiff’s counsel includes excerpts from e-mail messages apparently produced by defendant in response to the requests for production. One refers to a reconstruction/build back proposal attached to the e-mail, but no proposal was apparently provided to plaintiff. (Jiang dec., 5/27/26, exh. 10.) To the extent defendant has that and other responsive attachments to e-mail messages, those must be produced. The court acknowledges defendant’s contention in its supplemental response that it produced all responsive documents in its possession and that other documents may be in the possession of Grayson Community Management. The court also notes defendant indicated a willingness to subpoena Grayson for any responsive records to facilitate discovery.

The motion to compel is GRANTED IN PART as follows. As to RFP Nos. 8 through 21, defendant must produce any copies in its possession of responsive work orders, proposals, and estimates from contractors. Defendant must further subpoena Grayson Community Management for responsive records, and must produce those records to plaintiff upon receipt.

The parties’ requests for discovery sanctions related to this motion are DENIED.

Order to Submit Other Pending Discovery Disputes to a Discovery Facilitator

The parties have reserved at least seven additional discovery-related motion hearings. The parties are ordered to submit those and all other pending discovery disputes to a discovery facilitator through the Santa Clara County Superior Court Discovery Facilitator Program.